

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN HONG KONG

INTRODUCTION & FRAMEWORK

When campaigners moved to defend Victoria Harbour from the reclamation that was steadily swallowing it, they won something rare and lasting: a **Protection of the Harbour Ordinance**, and a landmark court ruling that gave it teeth — establishing that the government must show a compelling, overriding, and present need before it may reclaim the harbour, a test that has constrained harbour reclamation ever since. That victory is the truest picture of what environmental effort in Hong Kong can achieve. This is a dense world city with strong environmental law, a robust common-law legal system, and real institutions, which has protected some two-fifths of its land as country parks and even, recently, seen a vast reclamation megaproject shelved after years of environmental, technical, and fiscal opposition — set against a civic space that has narrowed in recent years. Hong Kong is a compact, mountainous, densely built territory of deep harbours, hundreds of islands, a long coast, rich marine waters, and extensive country parks, whose defining environmental struggles are the great land-reclamation projects that press upon the sea, the decline of the marine life those waters hold, and the pressure of development on the parks and wetlands. The tools here are real, proven, and capable of winning — exercised strictly on the environment.

A community in Hong Kong facing a harmful project works with genuinely strong, proven tools. Reclamation and major projects must pass through the **environmental-impact assessment and planning process** — a real gate — and, on the harbour, the **harbour-protection precedent and ordinance**, which require the government to prove an overriding need. The **Chinese white dolphins and the marine environment** can be defended through the **marine park designations and the science**. The **country parks and the wetlands** rest on strong **conservation law**. The **waste, pollution, and climate** can be reached through the **environmental law**. And behind them all stand the **strong environmental institutions, the common-law courts, the world-class technical experts, and the surviving environmental groups**, which genuinely work and have won. But these tools have real limits, and this guide states them plainly. The reclamation projects are government priorities, driven by the perennial demand for land. The marine life, above all the Chinese white dolphin, has declined severely. The country parks and wetlands face continuing development pressure. Waste and pollution are chronic. And the civic space has narrowed, so broad, political, or confrontational mobilisation is constrained and unwise — the work must stay strictly environmental, institutional, legal, and technical, and neutral on the politics. So aim for what these tools can genuinely deliver — a reclamation scrutinised and constrained, a marine park strengthened, a country park or wetland defended, a project assessed and conditioned — through the environmental-impact process, the conservation law, the science, and the courts, kept strictly to the environment, as the harbour precedent, the country parks, and the shelved reclamation show they can.

The Whole Strategy in One Idea

You win here through Hong Kong's strong institutions and law, kept strictly to the environment. Hold a reclamation to the environmental-impact process and the harbour-protection precedent that requires proof of overriding need; defend the dolphins and the sea through the marine parks and the science; invoke the conservation law that protects the country parks and wetlands; use the environmental law for waste and pollution; and rely on the common-law courts, the technical experts, and the environmental groups — neutral on the politics, and as the recent wins show can succeed.

Be Honest About Which Fight You're In

Hong Kong is a distinctive setting: strong environmental institutions and a proven record of winning, set within a narrowed civic space. Honesty about both is the first discipline. The tools genuinely work — the harbour precedent, the country parks, the shelved reclamation prove it — but the wider room for broad, political, or confrontational advocacy has tightened, so the safe and effective path runs strictly through the environmental-impact process, the conservation law, the science, the courts, and the environmental groups, kept strictly to the environment and neutral on the politics. Aim at the winnable, through the institutions and the law.

HOW THE SYSTEM WORKS

Who Actually Decides

A Hong Kong project runs through strong, genuine institutions. The **government, its planning department, and the Town Planning Board** decide the reclamation, the zoning, and the development. The **Environmental Protection Department and the environmental-impact assessment process** review major projects. The **conservation and marine bodies** hold the country parks, wetlands, and marine parks. And the **common-law courts** — up to the Court of Final Appeal — review the legality of it all, as the harbour precedent shows. Map who decides a project's fate before spending a week on it.

How a Project Moves — and Where You Jump In

A reclamation or major project needs environmental-impact assessment and planning approval, and — on the harbour — must satisfy the overriding-need test the harbour-protection precedent established. That assessment and planning process is your first entry point: the moment to document the harm, invoke the harbour precedent or the conservation law, and press for scrutiny, conditions, or refusal. Beyond it lie the courts, the marine parks, and the conservation law. Enter early, through the institutions and the law, kept strictly to the environment.

Follow the Money and the Permissions

Follow the reclamation: what a project takes from the sea or the harbour, and whether it can prove the overriding need the precedent requires. Follow the assessment: whether the environmental-impact study is adequate. Follow the designations: which country park, wetland, or marine park a project touches. The leverage lies in the environmental-impact process, the harbour precedent, the conservation law, and the courts.

Who's Supposed to Be Watching

Hong Kong has real watchers: the Environmental Protection Department and the assessment process, the Town Planning Board, the conservation and marine bodies, the common-law courts, the world-class technical experts, and the surviving environmental groups. These genuinely function, and a case is built to engage them — and, where they fall short of the law, to hold them to account in court, as the harbour case did.

QUICK REFERENCE: SUCCESS RATES

Opposition in Hong Kong is genuinely capable of winning — the harbour precedent, the country parks, and the shelved reclamation prove it — provided it is kept strictly to the environment and the law. The single

most decisive move is **grounding the case in the environmental-impact process and the relevant law — the harbour precedent, the conservation law, the marine science** — because Hong Kong's strong institutions and common-law courts respond to rigorous, law-based cases, and because the harbour precedent already requires the government to prove an overriding need. The environmental-impact process is the gate; the harbour precedent the distinctive legal lever; the conservation law the durable protection; the courts the enforcer. What the tools deliver is real: a reclamation constrained, a park or wetland defended, a project assessed and conditioned.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the reclamation, the marine or dolphin decline, the pressure on a country park or wetland, the waste or pollution. **What governs it?** — the environmental-impact process, the harbour precedent, the conservation or environmental law. **What does the science show?** — the marine, ecological, or pollution data. **Which institution or court reaches it?** — the assessment authority, the Town Planning Board, the courts. **Is it kept strictly environmental?** — the discipline that keeps the work safe and effective. Pick the fight where the environmental-impact process or the relevant law bites hardest.

STEP 2: DOCUMENTATION

Build the case in layers, law-grounded and technical. **Layer one: the harm** — the reclamation's footprint, the marine and dolphin decline, the park or wetland pressure, the pollution, documented with the science. **Layer two: the law and the standard** — the environmental-impact requirements, the harbour precedent's overriding-need test, the conservation and environmental law the harm breaches. **Layer three: the institution and the discipline** — which assessment authority, board, or court to engage, and the discipline of keeping the case strictly environmental and neutral on the politics. A case built on the assessment, the harbour precedent, and the conservation law, with world-class science, is one Hong Kong's institutions and courts take seriously — as they have before.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the project's assessment and plans, the reclamation footprint, the marine and dolphin data, the park or wetland pressure, the pollution. Gather the **law record**: the environmental-impact requirements, the harbour-protection precedent and ordinance, the conservation and environmental law, the marine-park designations. Gather the **science record**: the marine, ecological, and pollution evidence from the technical experts. Gather the **institution record**: the assessment authority, the Town Planning Board, the courts, the environmental groups. Hong Kong's strong institutions and disclosure make much of this genuinely obtainable.

STEP 3: BUILDING ENVIRONMENTAL AND TECHNICAL SUPPORT

In a narrowed civic space, the effort must be strictly environmental, institutional, and technical rather than broad or political. Build with the **surviving environmental and conservation groups**, whose expertise and standing are real; the **world-class scientists and technical experts** who hold the marine and ecological evidence; the **affected community and district voices**, kept to the environmental question; and the **legal counsel** who can bring the assessment and harbour-precedent challenges. Frame everything strictly around the environment — the sea, the dolphins, the parks, the wetlands — and neutral on the politics; keep it institutional and legal rather than confrontational; and let the science and the law carry the case.

STEP 4: THE ASSESSMENT, THE HARBOUR PRECEDENT & THE CONSERVATION LAW — WINNING THROUGH THE INSTITUTIONS

Set expectations honestly: here the levers are real, proven, and capable of winning, in a strong-institution city, though kept strictly to the environment within a narrowed space.

The Environmental-Impact Process and the Harbour Precedent

Reclamation and major projects must pass the **environmental-impact assessment and planning process**, and on the harbour the **harbour-protection precedent** requires the government to prove a compelling, overriding, and present need before it may reclaim. This is the distinctive lever — a real, court-tested constraint on the reclamation that presses upon the sea.

The Marine Parks and the Conservation Law

The **Chinese white dolphins and the marine environment** can be defended through the **marine park designations and the science**, and the **country parks and wetlands** rest on strong **conservation law**. Invoke the designations, the science, and the conservation law to defend the sea, the parks, and the wetlands.

The Environmental Law and the Courts

The **environmental law** reaches the waste and pollution, and the **common-law courts** enforce it all, as the harbour case proved. Pursued together — the assessment and harbour precedent, the marine parks and conservation law, and the environmental law and courts — these levers win real protection, exercised strictly on the environment.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each institution. **For the assessment authority**: here is a project whose environmental-impact study is inadequate. **For the Town Planning Board and the harbour**: here is a reclamation that cannot prove the overriding need the precedent requires. **For the conservation and marine bodies**: here is a country park, wetland, or marine area your law and designations protect. **For the courts**: here is the assessment, the harbour precedent, or the conservation law breached. **The golden rule**: ground every argument in the environmental-impact process and the law, back it with world-class science, keep it strictly environmental and neutral on the politics — and win through the institutions, as Hong Kong has before.

STEP 5: MEDIA STRATEGY

In a narrowed civic space, media must be handled with care and kept strictly to the environment. Frame the story around **the sea, the dolphins, the parks, and the law**: a reclamation that cannot prove its need, a marine environment in decline, a country park or wetland under pressure — never as broad political opposition. Carry it through the environmental and technical press, the conservation groups, and the professional channels. A few cautions govern everything: keep it strictly environmental and law-grounded; stay neutral on the politics; avoid broad or confrontational mobilisation; and let the science, the harbour precedent, and the conservation law carry the weight.

EMAILS & LETTERS

Keep every message strictly environmental, law-grounded, technical, and neutral on the politics.

8A — To the Environmental Protection Department: identify the project and the inadequacy of its environmental-impact assessment, and request proper scrutiny.

8B — To the Town Planning Board (harbour): set out that the reclamation cannot prove the overriding need the harbour precedent requires.

8C — To a conservation or marine body: connect the harm to a country park, wetland, or marine park and ask for its protection.

8D — On the marine science: present the dolphin and marine evidence and request its weight in the decision.

8E — On waste or pollution: invoke the environmental law against the harm.

8F — To the courts (through counsel): establish the assessment, harbour-precedent, or conservation-law breach.

8G — To an environmental group or technical expert: share the case and request expertise and support.

8H — To the environmental press: offer the documented, science- and law-based case, and ask for coverage.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: find the project's environmental-impact assessment and whether it touches the harbour, a marine park, a country park, or a wetland; document the harm with the science; write the one-page law-based case. **The fastest-moving levers:** the environmental-impact process, the harbour precedent, and the conservation law. **Emergency action:** if a reclamation is proceeding, the harbour precedent's overriding-need test and the assessment are the sharpest handles — raise them with the authorities and, through counsel, the courts. Throughout, keep it strictly environmental and neutral on the politics.

WHEN THE SYSTEM IS TILTED

Even with strong institutions the field can tilt: reclamation that is a government priority, a perennial demand for land. Recognise it, and lean on the levers the tilt cannot override — the environmental-impact process, the harbour precedent's overriding-need test, the conservation and environmental law, the marine science, and the common-law courts. In Hong Kong these genuinely work and have won. And accept, honestly, that the civic space has narrowed, so the work must stay strictly environmental, institutional, legal, and technical, and neutral on the politics.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Hong Kong retains a robust legal system and strong institutions, so the more usual challenge is a reclamation or development so prioritised that its interests weigh heavily, rather than outright capture. Where a decision is made against the assessment, the harbour precedent, or the conservation law, respond through the strong channels Hong Kong genuinely provides: the assessment authority, the Town Planning Board, the common-law courts, the technical experts, and the environmental groups. **On safety and the**

narrowed space: the city retains strong environmental institutions, a robust legal system, world-class science, and functioning environmental groups, so environmental work — kept strictly to the environment — can be pursued through genuine and effective institutional, legal, and technical channels. But the wider civic space has narrowed, so broad, political, or confrontational mobilisation is constrained and unwise; keep the work strictly environmental and neutral on the politics, and protect those involved.

INTEGRATION & TIMELINE

The steps run in parallel, law-grounded and strictly environmental. The documented harm feeds the assessment challenge, the harbour-precedent or conservation-law claim, and the court case at once; the environmental groups, scientists, and community organise strictly around the environment; the media stays strictly environmental and neutral. A rough timeline: **weeks one to four**, document the harm and the assessment's inadequacy, and engage the authorities; **months two to six**, press the harbour precedent, the conservation law, the marine science, and — through counsel — the courts; **beyond**, secure the win — a reclamation constrained, a park or wetland defended — and hold it. The core discipline: grounded in the environmental-impact process and the law, strictly environmental, and neutral on the politics.

FINAL ASSESSMENT

Opposition in Hong Kong is genuinely capable of winning, because it is a city with strong environmental institutions, a robust common-law legal system, world-class science, extensive country parks, and a proven record — the harbour precedent, the country parks, the shelved reclamation. This guide has been honest that the reclamation projects are government priorities driven by a perennial demand for land; that the marine life, above all the Chinese white dolphin, has declined severely; that the parks and wetlands face continuing pressure; that waste and pollution are chronic; and that the civic space has narrowed, so the work must stay strictly environmental, institutional, legal, and technical, and neutral on the politics. But those honest truths do not weaken the effort — they define its disciplined shape. A community that grounds its case in the environmental-impact process, the harbour-protection precedent that requires proof of overriding need, the conservation law that protects the parks and wetlands, and the marine science, and pursues it through the common-law courts, the technical experts, and the environmental groups — kept strictly to the environment — can genuinely constrain a reclamation, defend a park or wetland, and protect the sea. The tools here are real, proven, and capable of winning, and the work is the disciplined, strictly environmental defence of one of the world's great harbours, coasts, and country parks.